

Stereo.HCJDA 38.

Judgment Sheet

**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT**

....

Civil Revision No.599-D of 1983.

Altaf Ahmad.

Versus

Muhammad Anwar and 04 others.

J U D G M E N T.

Date of hearing: **26.10.2022.**

Petitioner by: Ch. Muhammad Riaz Jahania,
Advocate.

Respondents by: Mr. Tahir Muneer Malik, Advocate.

AHMAD NADEEM ARSHAD, J. Through this Civil Revision filed u/s 115 of *Code of Civil Procedure, 1908*, petitioner has called in question the validity and legality of judgment & decree of learned Appellate Court dated 17.04.1982 whereby while accepting appeal of the respondents, petitioner's suit for possession through pre-emption was dismissed.

2. Shorn of unnecessary details, plaintiff (*hereinafter referred to as **petitioner***) instituted a suit for possession through pre-emption against the defendants (*hereinafter referred to as **respondents***) qua suit land measuring 36 *Kanals*, 11 *Marlas* situated in *Khata* No.113 of Chak No.187/EB (Gaggo Mandi) Tehsil Burewala, District Vehari. Respondents contested the suit by filing written statement in contrast whereby they raised certain legal as well as factual objections. Owing to the divergent pleadings of the parties, learned Trial Court formulated necessary issues and invited them to produce their respective evidence. After recording evidence of the parties pro & contra, oral as well as documentary, suit was

decreed vide judgment & decree dated 20.01.1982. Feeling aggrieved, respondents preferred an appeal which was allowed by the learned Appellate Court via judgment & decree dated 17.04.1982 and resultantly the suit of petitioner was dismissed. Petitioner challenged the verdict of learned appellate Court by preferring instant Civil Revision which was dismissed by this Court on 30.05.2014. Being dissatisfied, petitioner challenge the verdict of appellate Court as well as this Court before august Supreme Court of Pakistan by preferring Civil Petition for Leave to appeal, where the leave was granted and was converted into Civil Appeal and the Hon'ble Supreme Court of Pakistan was pleased to allow the same while remanding the matter to this Court via judgment dated 31.01.2022 with the following observations:

“By consent it is ordered that the impugned judgment dated 30.05.2014 is set aside and the matter is remanded to the learned High Court. The determination made by the learned appellate court on 17.04.1982 in relation to issue No.8 is to the effect that the appellant/plaintiff did not enjoy superior right of pre-emption on account of being non-proprietor in the estate. This finding has been challenged by the appellant in ground No.(i) of his civil revision before the learned High Court, but the said finding has neither been considered nor determined by the learned High Court in the impugned judgment dated 30.05.2014. Learned counsel for both the parties agreed that the finding with respect to the locus-standi of the appellant goes to the root of the matter. Consequently, the same needs to be determined, after considering all the material available on record. While doing so, learned High Court shall decide whether issue No.4, at all requires fresh determination....”

3. I have heard learned counsel for the parties at length and perused the record with their able assistance.

4. Perusal of record reveals that instant matter has been remanded by the august Supreme Court of Pakistan with the mandate to give findings on issue No.8 and while doing so, to decide whether issue No.4 at all requires fresh determination.

5. After remand from the august Supreme Court of Pakistan, petitioner moved an application (C.M. No.1776-2022) seeking permission for production of additional evidence.

Respondents vehemently opposed said application by filing its contesting written reply.

6. From perusal of said application, it appears that petitioner intends to produce following documents: -

- (i) *Attested copy of Register Haqdaran Zamin of Khewat No.134/113 for the years 1977-78 Chak No.187/EB, Tehsil Burewala District Vehari.*
- (ii) *Attested copy of mutation No.268 dated 30.09.1975.*
- (iii) *Attested copy of mutation No.269 dated 30.09.1975.*
- (iv) *Attested copy of mutation No.335 dated 28.12.1977.*

7. Learned counsel for the petitioner maintains that register *Haqdaran Zamin* for the year 1973-74 regarding *Khewat* No.113 Chak No.187/EB is already on file as Exh.P-2 and in said document mutation No.268 by which proprietary rights were conferred upon Fazal Dad son of Hashim by the Government, mutation No.269 regarding sale of land 100 *kanals* 02 *marlas* by Fazal Dad in favour of petitioner and Ameer Sultan vendor, mutation No.335 regarding sale of land by Ameer Sultan in favour of Muhammad Anwar etc., and mutation No.339 regarding sale of land by Ameer Sultan in favour of Barkat Ali etc., are duly mentioned but the same were not produced at the time of recording evidence of the plaintiff. He further maintained that said documents are very much necessary to reach the correct decision of case and be allowed to produce as additional evidence in the interest of justice.

8. While controverting the arguments advanced on behalf of the petitioner, learned counsel for the respondents maintains that the application is not maintainable as it has been filed with malafide intention and to fill up inherent lacunas or defects in evidence which is not permissible under the law; that the application is not tenable at such a belated and revisional stage; that the petitioner has not approached this Court with clean hands; that the petitioner failed to give any reason for non-adducing the evidence before the learned trial Court; that there is no evidence on record which suggests that said documentary evidence was not available to the petitioner at the

time of leading affirmative evidence and prayed for dismissal of the application.

9. **Heard. Record perused.**

10. Petitioner instituted the suit 44 years ago on 07.12.1978 and his evidence was recorded in the year 1980-81. The suit was decreed vide judgment and decree dated 20.01.1982. Appeal against said judgment and decree was accepted vide judgment and decree dated 17.04.1982, against which the instant revision is pending since 1983. Petitioner filed instant application on 14.06.2022 after the lapse of almost 44 years. Order XLI Rule 27 C.P.C. envisaged certain circumstances when additional evidence can be adduced. It would be appropriate to reproduced Rule 27 of Order XLI C.P.C., which reads as under: -

“27. Production of additional evidence in Appellate Court.—(1) *The parties to an appeal shall not be entitled to produce additional evidence, whether oral or documentary in the Appellate Court, But if—*

(a) The Court from whose decree the appeal is preferred has refused to admit evidence which ought to have been admitted, of

(b) the Appellate Court requires any document to be produced or any witness to be examined to enable it to pronounce judgment, or for any other substantial cause, the Appellate Court may allow such evidence or document to be produced, or witness to be examined.

(2) Wherever additional evidence is allowed to be produced by an Appellate Court, the Court shall record the reason for its admission”.

Said Rule has been amended in the following terms vide Notification No.250/Legis/XI-Y-26 dated 23.10.2020 and came in to force on 01.11.2020.

“27. Production of additional evidence in Appellate Court: - *The Appellate court, after recording reasons, allow the parties to an appeal to produce additional evidence, whether oral or documentary:*

(a) if the Court from whose decree the appeal has been preferred, has refused to admit evidence which ought to have been admitted.

(b) the Appellate court, on being satisfied that the additional evidence has been available but could not be ns beyond the control of the party seeking its production; or

(c) the Appellate court itself requires any such evidence so as to enable it to pronounce a judgment.”

11. Keeping in view the said provision of law, it appears that first situation is not attracted because the learned trial Court never refused to admit the said documents in evidence. In second circumstance, the appellate Court may require any document to be produced or any witness to be examined to enable it to pronounce judgment or for any other substantial cause. The expression “to enable it to pronounce judgment” has been subject to general decision of superior Court wherein it has been held that when appellate Court finds itself unable to pronounce judgment owing to lacunas or defects in the evidence as it stands it may admit additional evidence but a party to the appeal cannot be allowed to produce additional evidence so as to patch-up the weaker parts of its case or fill-up omissions. The scope of order XLI Rule 27 C.P.C. is limited as it contemplates very few circumstances or conditions in which the appellate Court may allow a party to the appeal to produce additional documentary evidence. Admittedly, the case of the petitioner does not fall under Rule 27 C.P.C., because there is no material on record which suggests that the said documents have been available but could not be produced for reasons beyond the control of petitioner. Petitioner failed to satisfy the Court with regard to non-production of said documents at relevant time.

12. Order XLI Rule 27 C.P.C. does not envisage filling-up the lacuna left by a party in evidence before trial Court, as held by august Supreme Court of Pakistan in “Bashir Ahmad versus Ahmad-ul-Haq Siddique” (1985 SCMR 1232). In another case titled “MUHAMMAD YOUSAF versus Mst. MAQSOODA ANJUM and others” (2004 SCMR 1049) the august Supreme Court of Pakistan held that additional evidence could not be received to fill-up lacuna

or provide for deficiency in the case of a party. In case titled as “SHTAMAND and others versus ZAHIR SHAH and others” (2005 SCMR 348) the august Supreme Court of Pakistan refused to allow the plaintiff to produce additional evidence who filed application after nine years. In another case titled as “Syed MUHAMMAD HASSAN SHAH and others versus Mst. BINAT-E-FATIMA and another” (PLD 2008 Supreme Court 564) it was held that the power available under Order XLI, Rule 27 C.P.C. is not meant to cater the needs of a particular party but is available for exercise by the appellate Court to appropriate cases where need for taking additional evidence appears essential to the Court for just decision of the case. In a recent judgment of august Supreme Court of Pakistan in case titled “MUHAMMAD SIDDIQUE versus GUL NAWAZ and others” (2021 SCMR 1480) held as under: -

“As to the production of additional evidence, the powers of the appellate court under Order XLI, Rule 27, C.P.C. are not absolute but are structured by the provisions of rule 27 itself and could only be exercised in cases where (i) the court whose decree is under appeal has refused to admit a piece of evidence which ought to have been admitted or (ii) the Appellate court requires any document to be produced or any witness to be examined to enable it to pronounce judgment or (iii) for any other substantial cause and that too after recording reasons. However, it is to be kept in mind that Rule 27 does not envisage providing of second opportunity to adduce evidence or to rectify the inadvertence or negligence of a party.”

13. The petitioner failed to give any plausible reasons for non-production of the said documents before the learned trial Court. There is no reasonable ground available to the petitioner for non-production of the said documents during the trial of the suit; and, though he was conscious of the questions involved in the suit, yet he did produce the said documents. No explanation was offered that why the evidence which was sought to be produced before this Court for the first time was not tendered before the trial Court. Discretion of Court should not be exercised in favour of a person who had remained indolent for years and such person should suffer the consequences of his failure. Petitioner failed to explain that why any

step to produce evidence in question was not taken for so many years. In view of lack of vigilance on the part of the petitioner which lasted for years together, it was not a fit case for exercise of powers by this Court in his favour under Order XLI Rule 27 C.P.C. Even otherwise said documents are not required by Court to decide the lis on merits and to reach a just conclusion.

14. For the foregoing reasons this application has no merits, hence, dismissed.

15. Petitioner in his plaint pleaded that he is owner in possession of *Khata* No.113, *Khasra* No.31, *killa* No.15/2, 16, 17, 24 & 25 measuring 30 *kanals* and claimed his superior rights on the basis of custom of pre-emption as well as being co-sharer in the *Khewat*, whereas the respondents in their written statement negated the stance of petitioner with regard to his co-sharer in the *Khewat* and the custom of pre-emption in the locality. Learned Trial Court in the light of said controversy framed issue No.8 as under:

ISSUE NO.8.

Whether the plaintiff has got a superior right of pre-emption as against defendants/vendees? OPP.

This issue was decided in favour of petitioner by the learned Trial Court, whereas, appellate Court decided it against the petitioner and reversed the findings of learned Trial Court. Onus to prove of this issue was placed on the shoulders of petitioner. To discharge this onus, petitioner Altaf Ahmad appeared as P.W.1 and produced Nazir Ahmad as P.W.2. In documentary evidence, he produced copy of *Khasra Girdawri* as Exh.P.1, copy of record of rights for the year 1972-73 as Exh.P.2 and copy of registered sale deed No.1364 dated 12.12.1977 as Exh.P.3.

16. Petitioner while recording his statement as PW-1 maintained that he is co-sharer in the joint *khatta* where suit property was situated. Exact deposition is as under: -

"بیان کیا کہ اراضی متدعوہ میں مشترکہ کھیوٹ دار ہوں۔"

During cross-examination he suggested it incorrect that he is not share-holder in the joint *khetwat*. Exact deposition is as under: -

"یہ غلط ہے کہ میں مشترکہ کھیوٹ دار نہ ہوں"

Petitioner produced copy of *Khasra Girdwari* as Exh.P-1 which reveals that petitioner is in possession of *Khasra* No.31, 15/2, 16, 17, 24 & 25. Petitioner produced copy of record of rights for the year 1972-73 as Exh.P-2. Perusal of cultivation Column No.4, meant for name of cultivator of said Exh.P-2, name of Fazal Dad son of Hashim was present there whereas petitioner Altaf Ahmad was mentioned as tenant at will and in the ownership column, "Provincial Government" was recorded as owner. From reading plaint along with copy of record of right for the year 1972-73 (Exh.P-2) it appears that *Khewat* No.113, *khatoni* No.283 to 286 consisted of land measuring 100 *kanals* 02 *marlas* with specific *Khasra* numbers detailed as under: -

Khasra No.31:

15/2 measuring 04 *kanals*, 16, measuring 08 *kanals*, 17 measuring 04 *kanals*, 24 measuring 06 *kanals*, 25 measuring 08 *kanals* which belongs to petitioner.

Khasra No.58:

4/4 measuring 08 *marlas*, 4/5 measuring 03 *kanals* 02 *marlas*, 5/1 measuring 01 *kanal*, 5/3 measuring 06 *kanals* 07 *marlas*, 6 measuring 08 *kanals*, 7/2 measuring 07 *kanals* 15 *marlas*, 11/1 measuring 07 *kanals* 08 *marlas*, 12 measuring 08 *kanals*, 13 measuring 09 *kanals*, 14 measuring 05 *kanals* 16 *marlas*, 19 measuring 04 *kanals* 04 *marlas*, 20/1 measuring 06 *kanals* 14 *marlas*, 5/4 measuring 13 *marlas*, 26 measuring 10 *marlas*, 11/2 measuring 12 *marlas*, 20/2 measuring 13 *marlas*.

Petitioner produced registered sale deed No.1364 dated 12.12.1977 as Exh.P-3 wherein it appears that vendor namely Ameer Sultan sold specific *Khasra* number detailed as *Khasra* No.58 *killi* No.11/1 measuring 07 *kanals* 08 *marlas*, No.11/2 measuring 12 *marlas*, No.12 measuring 08 *kanals*, No.13 measuring 09 *kanals*, No.19

measuring 04 *kanals* 04 *marlas*, No.20/1 measuring 06 *kanals* 14 *marlas* & No.20/2 measuring 13 *marlas* (07 parts/*Qitaats*) total land measuring 36 *kanals* 11 *marlas* for a consideration of Rs.220,000/- to Muhammad Anwar, Liaqat Ali sons of Haji Ali Muhammad, Abdul Majeed son of Haji Muhammad Ismail, Nazir Ahmad son of Haji Aziz-ud-Din equal in share with regard to $\frac{3}{4}$ shares and Sajjad Amjid son of Abdul Majeed remaining $\frac{1}{4}$ share.

17. Petitioner claimed his superior right on the basis of co-sharer in the joint *khatta* No.113. The term “co-sharer” is not defined anywhere in the Punjab Pre-emption Act, 1913. (I of 1913) (hereinafter called as “***The Act, 1913***”) but its meaning is quite clear. The word ‘co-sharer’ postulates that there are some other persons as well who have a right in the property. The very conceptions of “joint property” presuppose that it also belongs to a person or persons other than the vendor. All the persons who so own a property among themselves are the co-sharer of each other. Their relationship is mutual. The word ‘co-sharer’ signifies persons owning a share or shares in the whole of the property or properties of which another share or other shares were the subject of sale. In other words, the word ‘co-sharer’ denotes a person who holds an existing joint proprietary interest, whether absolute or limited, in an un-divided property. The petitioner purchased the specific *khasra* number from original allottee namely Fazal Dad son of Hashim measuring 30 *kanals* and got its possession whereas Ameer Sultan son of Bostan also purchased specific *khasra* number from the said allottee namely Fazal Dad son of Hashim and sold a portion of land measuring 36 *kanals* 11 *marlas* with specific *khasra* number to the respondents as evident from the registered sale deed No.1364 dated 12.12.1977 and gave the possession of said specific *Khasra* numbers. The august Supreme Court of Pakistan in a full bench judgment “*Ali Muhammad Vs. Shera and another*” (1987 SCMR 207) held that sale of specific *killas* numbers to the vendees would not make the pre-emptor co-sharer in the joint *khatta*. The facts of the case are that the respondents of said case namely Shera etc., had purchased land

measuring 88 *kanals* in *khata* No.218 vide mutation No.308 sanctioned on 28th August, 1970. Ali Muhammad pre-empted this sale on the ground that he was a co-sharer in the *khatta* with the vendor Khan Masood Ahmad Khan. It was found that Ali Muhammad, plaintiff, had purchased some land prior to the sale in question in the same *khatta* and the learned courts below, therefore, held that he was a co-sharer in the *khatta* and had, therefore, a superior right of pre-emption. In the High Court, however, it was held that the plaintiff as well as the vendees-defendants had purchased the land from the same original owner namely, Khan Masood Ahmad Khan, who was admittedly the sole proprietor of the *khatta* with no other person to share the *khatta* with him; that the plaintiff had purchased specific fields from Khan Masood Ahmad Khan and, therefore, he could not possibly become a co-sharer in the *khatta* with Khan Masood Ahmad Khan. The august Supreme Court of Pakistan held as under: -

“The learned counsel for the appellant contended that the learned single Judge was not correct in arriving at the conclusion that since the appellant had not purchased an undivided share in the property of Khan Masood Ahmad Khan he was not a co-sharer, and, therefore, could not claim superior right of pre-emption. According to the learned counsel the khasra number from which the land had been purchased by the appellant had not been partitioned and so long as this was the position, the appellant was a co-sharer with Khan Masood Ahmad Khan and had a superior right of pre-emption in the property in dispute.

*We have carefully considered the arguments of the learned counsel for the parties. Admittedly specific killas had been sold by Khan Masood Ahmad Khan of his landed property to the appellant just as he had sold specific killa number of his property to the respondents. Sale of specific killa number to the appellant would not make the appellant co-sharer in the property with Khan Masood Ahmad Khan. Even in para-one of his plaint before the trial Court the appellant had admitted that Khan Masood Ahmad Khan was the sole proprietor of the property in question. Obviously if specific killa numbers had been sold by Khan Masood Ahmad Khan to the appellant it would not amount to the sale of un-specified or definite share so as to make him a co-owner with Khan Masood Ahmad Khan in the said *khatta*. The learned second appellate Court had given a finding of fact in the instant case while arriving at the conclusion that since the appellant was not co-sharer in the *khatta*, he did not have a superior right of pre-emption”.*

This Court in a case “Nawab Din and 2 others vs. Hassan Muhammad represented by legal heirs” (1987 CLC 1656) while relying upon *Ali Muhammad’s* case supra observed that:

“The principal of law enunciated in Ali Muhammad’s case, therefore, appears to be that when a person is a sole proprietor of a khatta with no other person to share the khatta with him and that person sells, not a definite share in the khatta, but some specific field numbers out of it, first to the pre-emptor and then to the vendee-defendant, the sale of the specific number to the pre-emptor would not make him a co-sharer in the khatta with that person.”

And held as under: -

“This is precisely what happened in this case. As has been seen above Mst. Jamil-un-Nisa Begum was the sole owner of the khatta No.11; she first transferred some specific khasra number out of the khatta to Hassan Muhammad, plaintiff, and then the remaining khasra number to Nawab Din etc., appellants. With the sale in favour of Nawab Din etc., Mst. Jamil-un-Nisa ceased to be an owner in the khatta. The facts of this case, therefore, fall squarely within the rule laid down in Ali Muhammad’s case. I therefore, hold that the learned Courts below wrongly held that Hassan Muhammad, plaintiff, was a co-sharer in the khatta.”

18. From the above discussion, it is abundantly clear that petitioner and Ameer Sultan vendor purchased specific Khasra/Killa numbers from sole proprietor of a Khata namely Fazal Dad s/o Hashim, with no other person to share the Khata with him and petitioner, who became owner in possession of a specific *khasra* number, evident from the plaint and copy of *khasra girdwari* (Exh.P-1), has no superior right of pre-emption qua the suit property being co-sharer as the respondents have also purchased a specific *khasra* number from the vendor Ameer Sultan. Petitioner cannot get the benefit of the statement of one of the respondents namely Muhammad Anwar (DW-10) wherein during cross-examination he deposed that Altaf Ahmad was a *Khewatdar* in the land in dispute while the defendants-vendees were not owners in the said *khewat*. In presence of Exh.P-1 (copy of *khasra Girdwari*), Exh.P-2 (copy of record of right for the year 1972-73), and Exh.P-3 (copy of sale deed No.1364 dated 12.12.1977) the deposition made by DW-10 was of no avail. Learned appellate Court rightly decided the issue No.8 against the petitioner.

19. The next question for determination is that whether suit property is pre-emptable or not? Respondents in their written statement specifically pleaded in preliminary objection No.4 that suit property is not pre-emptable because it did not fall within the definition of agricultural land; that neither it is “village immovable property” nor “urban immovable property” and it was purchased for (residential) (سکنی) to establish a factory; that before the institution of the suit, they erected the factory and it started working; therefore, suit is liable to be dismissed. Exact deposition in verbatim is as under:

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دعویٰ	"جواب
4	عذرات
نمبر	ابتدائی

یہ کہ جائیداد متدعو یہ تابع شفع نہیں ہے کیونکہ نہ تو یہ زرعی اراضی کی تعریف میں آتی ہے اور نہ ہی Village Immoveable Property کی تعریف میں آتی ہے اور نہ ہی Urban Immoveable Property کی تعریف میں آتی ہے۔ جائیداد متدعو یہ باغراض سکنی برائے فیکٹری خرید کی گئی تھی اور دائری دعویٰ سے قبل ہر طرح سے فیکٹری مذکور تیار ہو کر چالو ہو چکی تھی بدیں وجہ سے دعویٰ ہذا قابل اخراج ہے "

They also pleaded while replying on facts that suit property is surrounded by population and within the limits of “Gaggo” city, where grain market, High School, Railway Station, Police Station etc., are present and is the best place for business point of view; that said property is situated on the road side of Multan-Lahore Highway road; that suit property is situated in a factory area and was purchased for the establishment of a factory which was established before the institution of the suit and it started working with the name and style of “Bismillah Cotton Ginning, Processing and Oil Mills Gaggo. Exact wording in verbatim is as under: -

واقعاتی	"جواب
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ارضی متدعو یہ کے چاروں طرف آبادی ہے۔ گلو شہر کی حدود کے اندر واقع ہے وہاں بہترین غلہ منڈی بنی ہوئی ہے ہائی سکول پولیس اسٹیشن ریلوے اسٹیشن وغیرہ بھی ہے۔ کاروباری لحاظ سے بہترین علاقہ تصور ہوتا ہے وہاں پر بہترین ہسپتال ہے پختہ روڈ روندہ ملتان لاہور روڈ پر واقع ہے جائیداد

متد عویہ فیکٹری ایریا ہے۔ نیز جائیداد متد عویہ فیکٹری کے لیے خریدی گئی ہے اور دائری دعویٰ سے کئی ماہ قبل فیکٹری ہر طرح سے تیار ہو کر چالو تھی۔ فیکٹری موسومہ بسم اللہ کاٹن جنگ پریسنگ اینڈ آئل ملز گلو ہے۔"

In the light of said averments, learned trial Court framed issue No.4 in the following terms and placed its onus upon the defendants.

“Issue No.4.

Whether the sale in disputed is not pre-emptable? OPD.”

20. Petitioner Altaf Ahmad while recording his statement as PW-1 stated that factory was constructed after institution of the suit. Exact deposition is as under: -

PW-1

"مدعا علیہم اراضی متد عویہ کی تعمیر فیکٹری وغیرہ بعد از دائری دعویٰ کی ہے۔"

PW-2 also stated in his examination-in-chief that after the institution of the suit in the year 1979 vendees constructed four-wall around the suit property and established a factory. Exact deposition is as under: -

PW-2

"سال 1979 میں بعد از دائری دعویٰ مدعا علیہم مشتریان نے آراضی متد عویہ پر چار دیواری قائم کر کے فیکٹری لگائی تھی"

Petitioner produced registered sale deed No.1364 dated 12.12.1977 as Exh.P-3. Perusal of the said document it appears that on the head-note of the deed it was written that copy of sale deed agricultural land for the purpose of residential valuing Rs.2,20,000/-. Exact wording are as under: -

"بج نامہ رقبہ زرعی باغراض سکنی مالیتی دو لاکھ بیس ہزار روپے"

In the body of said deed it was also mentioned that the suit property is sold for residential purposes; that therefore, sale deed has been executed with regard to agricultural land for the purpose of residential in favour of vendees. The exact wording is as under:-

"رقبہ ہذا میں ایک کوٹھا خام تعمیر شدہ ہے رقبہ ہذا باغراض سکنی فروخت کیا ہے۔ لہذا بج نامہ رقبہ ہذا زرعی باغراض سکنی بحق مشتریان مذکور بحصص مندرجہ بالا تحریر و تکمیل کر دیا ہے۔"

DW-2 namely Muhammad Yousaf while recording his statement maintained that suit property was purchased for factory which was constructed and was running when the suit was instituted. Petitioner failed to cross-examine said portion of the deposition of DW-2. Exact deposition is as under:

DW-2 محمد يوسف

"انور مدعایہ نے فیکٹری کے لیے آراضی متدعو یہ خریدی اور اس پر فیکٹری کھڑی کر دی۔ جب دعویٰ دائر ہوا تو فیکٹری چالو تھی۔"

DW-3 Muhammad Din also maintained that suit property was purchased for establishing a factory and more than three years have been passed with the construction of said factory, which started functioning after six months of the sale of land. Exact deposition is as under:

DW-3 محمد دین

"آراضی متدعو یہ کارخانہ لگانے کے لیے لی تھی 3 سال سے زائد عرصہ گزر چکا ہے اب اس پر فیکٹری لگ چکی ہے جو فروخت آراضی کے چھ ماہ بعد چالو ہو گئی تھی۔"

DW-4 Ghulam Sarwar Lambardar deposed that suit property is situated at road-side of Burewala to Lahore Road and a factory is established upon it. He further deposed that Gagoo is sub Tehsil where are hospital, sub Tehsil office, Police Station, Girls High School, Railway station, 5/6 banks, factories and ice factories. Exact deposition is as under: -

DW-4 غلام سرور نمبر

"آراضی متدعو یہ واقعہ برسرک بوریوالہ لاہور پر اب فیکٹری لگ چکی ہے۔ گلو سب تحصیل ہے وہاں ہسپتال بھی ہے سب تحصیل و تھانہ بھی ہے۔ لڑکیوں کا ہائی سکول ہے ریلوے اسٹیشن بھی ہے بنک 5/6 ہیں۔ فیکٹری بربل سڑک ہے اسی سڑک پر چار اور فیکٹریاں ہیں۔ برف کے کارخانے بھی ہیں"

محمد مشتاق DW-7

"میں نے بسم اللہ کاٹن فیکٹری دیکھی تھی میں نے یہ بلڈنگ بنائی تھی ہمارے پاس اس کا ٹھیکہ تھا جنوری 1978 میں کام شروع کر کے اگست 1978 میں ختم کر دیا تھا۔ ستمبر اکتوبر میں فیکٹری چالو ہو گئی تھی۔"

Respondents produced DW-5, DW-6, DW-7, DW-8, DW-9, D.W.11 & D.W.12. All of them maintained that they remained engaged with construction of the factory at the suit property. One of the respondents namely Muhammad Anwar got recorded his statement as DW-10. He deposed that when the suit property was purchased, no crop was cultivated at the spot. He also maintained that they also did not cultivate any crop. He also deposed that he purchased the suit property for establishing a factory. Exact deposition is as under:-

"جب رقبہ خریدا تھا تو کوئی فصل کاشنہ نہ تھا۔ کوئی فصل ہم نے کاشت نہ کی تھی۔ ہم نے فیکٹری کے لیے رقبہ خریدا تھا۔ مدعی کو اچھی طرح جانتا ہوں۔ الطاف نے سودا کرایا تھا"

He further stated that petitioner was offered but he refused to purchase the suit property and he is also selling his land by making plots. He further deposed that they erected the factory on his proposal/instigation of Altaf. Factory is situated away from the Abadi of Chak. Said factory is situated at Multan-Lahore road and on the said road, Railway station, Hospital, High School, Post Office, Ghallah Mandi, are situated. Five other factories are also situated there. Petitioner failed to cross-examine the said material portion of deposition of DW-10. His deposition in verbatim is as under:

"الطاف کو پیشکش کی گئی تھی۔ لیکن اس نے خریدنے سے انکار کیا تھا۔ وہ خود پلاٹ بنا بنا کر فروخت کر رہا تھا۔"

"جب بسم اللہ کاٹن فیکٹری بنتی رہی۔ الطاف دیکھتا رہا تھا۔ اور اسکے ایمپر ہم نے یہ فیکٹری یہاں لگوائی تھی۔ افتتاحی رسم میں شامل تھا۔ فیکٹری ہماری ستمبر 1978 میں کپاس کی خرید شروع کر چکی تھی۔ 15.1.78 کو کنکشن بجلی واپڈا ملا تو ہم نے فیکٹری چالو کر دی۔ اس پر شفع نہ ہو سکتا ہے۔ جب دعویٰ دائر کیا تو 7، 1/2 7 ہزار کاٹن گٹھ تیار ہو چکی تھی۔ فیکٹری چک کی آبادی سے دور ہے۔ یہ فیکٹری ملتان لاہور مین روڈ پر واقع ہے۔ اس روڈ پر ریلوے سٹیشن، ہسپتال، ہائی سکول، ڈاک خانہ، غلہ منڈی وغیرہ بھی ہے۔ لہذا یہ جگہ بڑی اہمیت کی حامل ہے۔ دوسری فیکٹریاں 5 عدد اور بھی لگی ہوئی ہیں۔"

21. The right of pre-emption by virtue of Section 6 of the Act, 1913 exists in respect of "agricultural land" and "village immovable property". A right of pre-emption also exists under section 7 of the Act, 1913 in respect of "urban immovable property"

in any town or sub division of a town subject to proof of existence of custom of pre-emption in such town or subs Division. All these three terms are defined in Section 3 of the Act, 1913. “Immovable property” either village or urban does not include agricultural land. This is clear from the respective definition of “village immovable property” and “Urban immovable property”, which both exclude “agricultural land”, which terms, by adoption of its definition from the Punjab Alienation of Land Act, 1900, means land which is not occupied as the site of any building in a town or village and is occupied or let for agricultural purpose or for purpose sub serving to agricultural or for pasture and for this purpose shall even excludes the sites of buildings and other structures on such land. The term “urban immovable property”, therefore, will not cover “agricultural land” mainly on account of its being located in an urban area. It will indeed be a misconception of the law to equate the term “Urban immovable property” with “urban property”. The Pre-emption Act speaks only of “Urban immovable property”. The Board of revenue is no doubt empowered by Section 8(2) of the Act, 1913 to declare by a notification that no right of pre-emption or only such limited right as the Board may specify shall exists with respect to any land or property or class of land or property or with respect to any sale or class of sales. Admittedly the suit property pre-empted by the petitioner was completely built-up property and this had permanently changed the nature of the agricultural land. This Court in a case “Muhammad Hussain v. Muhammad Din etc.” (PLJ 1975 Lahore 234) observed as follow :-

“A piece of land may be paying land revenue but it would be out of the estate if its character is changed by putting it to use permanently other than for agricultural purposes. Whenever a house or other such superstructure is erected on land, the intention of the owner shall be to convert it to all other purposes except agricultural and the land does not remain a part of the estate and its owner voluntarily walks out of the estate. From the definition of a estate as given in Punjab Land Revenue Act, it is apparent that an estate which would include land both the agricultural and non-agricultural as long as it does not form part of a village or urban immovable property which has been

assessed to land revenue would fall within the definition of estate. But if a portion of the estate is by constant and permanent user fallen into the category of village or urban immovable property although assessed to land revenue, would no more form part of the estate.”

22. This Court in a case titled as “MUHAMMAD SADIQ AND ANOTHER V. ABDUL AZIZ AND ANOTHER” (1990 CLC 1387) observed as under:

“Reading the definitions of the expressions “land”, “village immovable property” and “urban immovable property” together, in the light of the guidance to be gained from decided cases, it appears that the essence of the definition of agricultural land is its agricultural or pastoral character. In order to determine whether the land is agricultural land, the definition prescribes two tests, one negative that is the property should not be occupied as the site of a building in town or village and the other positive that it should be occupied or let for agricultural purposes or for purposes subservient to agriculture or for pasture. Thus, if a land is occupied as the site of any building, the Court must approach the matter by asking itself objectively: Whether the locality where it is situate is a town or village; and Whether it is occupied or let for agricultural purposes. If the answer to the first question be in the affirmative, then depending upon its’ situation in a town or village, it is either urban or village immovable property; it is not agricultural land. But if it be land occupied or let for agricultural purposes, then the buildings on it are also agricultural land. If the land satisfies the test that it is a site of a building in a town or village, then it cannot be agricultural land and it appears to follow logically that in that case the second question would not arise.”

23. In the case titled “Elahi Bakhsh and others V. Allah Bakhsh and others (NLR 1980 SCJ 286), Hon’ble Supreme Court of Pakistan held as follows:

“It may be mentioned that the area involved was only ten marlas (in each case) and the High Court has, after perusal of the relevant record, held that a part of it was shown therein as ‘Ghair Mumkin Abadi’. It as surrounded by houses, “Pucka” metalled road and was located within the municipal limits of Multan City. The High Court referred to large number of cases cited before it by the learned counsel for the parties for the purpose of the relevant factors which in such cases are to be taken into the consideration, and after

referring to the same in the light of the facts and the circumstances of the present case held that the property in dispute was “Urban immovable property” and further that the perusal of the sale deeds and area mentioned therein obviously goes to show that the alienations were for ‘small pieces of land for constructions purposes’. This view of the High Court appears to be well considered, which does not suffer from mistake of any legal principal in the matter of appreciation of evidence in cases of this type and is fully supported from the facts and features mentioned therein.”

24. Similarly, in “Muhammad Hussain V. Ghulam Qadir (PLD 2006 SC 594)”, Hon’ble Supreme Court having considered the evidence led came to the conclusion that the land had the characteristics to be classified as urban immoveable property and was not pre-emptable. The appeal was allowed and the suit was dismissed.

25. In case titled “Muhammad Idrees and others V. Sardar Ali (2013 SCMR 913)”, Hon’ ble Supreme Court of Pakistan held as under:

“An analysis of the evidence led would indicate that the suit land was part of Sharkargarh Town and assumed the characteristics of an urban, immoveable property. The expression “urban immoveable property” has been defined in subsection (3) of section 3 of the Punjab Pre-emption Act, 1913 which law admittedly regulated the pre-emption sales at the time when the transaction took place it reads as follows:--

“(3) ‘Urban immovable property’ shall mean immovable property within the limits of a town, other than agricultural land. For the purposes of this Act a specified place shall be deemed to be a town (a) if so declared by the [State] Government by notification in the Official Gazette, or (b) if so found by the Courts”
A look at the afore-referred provision would indicate that the urban immovable property is not merely the immovable property which fell within the limits of a town as declared by the Board of Revenue but the courts of law could also hold any property to be urban immovable property if there was evidence to that effect. The suit land was a small plot of two kanals and it was specifically averred in the written statement that it was purchased for building a house; that it was part of the Shakargarh Town; that no custom of pre-emption prevailed at the relevant time. Respondent-plaintiff did not lead evidence to prove that it was not urban property. The sale deed itself indicates that the suit land was purchased for construction purposes and

three vendors had placed on record their affidavits to the effect that the suit land was not agricultural and further that it was sold for construction purposes. The plaintiff did not lead any evidence in rebuttal. No counter affidavit was submitted and at no stage the Court was requested to summon the deponents of those affidavits for cross-examination. Thus this part of the evidence led by the appellant-defendant remained uncontroverted.”

26. In another case titled “Bilal Ahmed and another V. Abdul Hameed (2020 SCMR 445)”, Hon’ble Supreme Court of Pakistan guided as under:

“First, we will consider whether respondent/plaintiff can claim the right of pre-emption on the basis of Revenue Records. We are clear in our mind that the Suit property was constructed and urbanized, and it has also been admitted between the parties that the Suit property, as well as the property on the basis of which the Respondent/Plaintiff claims the right of pre-emption, are commercial properties having property number allocated by the Excise and Taxation Department. Therefore, no benefit of Revenue Records, even if ownership of both the parties would have been recorded in the same Khewat, would be given to the Respondent/Plaintiff for grant of a decree of pre-emption on the basis of Shafi-e-Shareek in the light of section 3 (before its amendment in 2019) read with section 56(d) of the Land Revenue Act, 1967.”

27. There is no cavil with the proposition that requirement from pre-emptor to prove his right of pre-emption on three stages, one on the date of pre-empted sale, secondly on the date of institution of pre-emption suit and thirdly when it is finally culminated. August Supreme Court of Pakistan in a case titled as “Rehman Ali through legal representatives v. Muhammad Younas and others” (PLD 2014 Supreme Court 680) held as under: -

“ It may be stated here that under the law, a pre-emptor is obliged to have a right, of pre-emption on the date of sale; the right on the date of institution of the suit; hold the right during the pendency of the suit and must possess it till the passing of the decree i.e. date of the decree. In the instant case, much before the passing of the decree by the trial court as dilated above, the appellants on account of section 35(1)(2) read with section 6(2) of the Act lost the right of pre-

emption, therefore, their suit was liable to be dismissed.”

28. Petitioner failed to prove his right of pre-emption on the said dates as the suit property changed its character from agricultural land to commercial factory land. Right of pre-emption was only to safeguard the privacy of Muslim families and the same could not be enforced in case of commercial property because the question of disagreeable neighbours in such cases does not arise.

29. The pre-empted land was a Sakni land (as it was mentioned in the sale deed/Exh.P-3, the land was being purchased for Sakni purposes), therefore, petitioner cannot assert to be one of proprietary body of the village or owner in the estate in order to claim the right of pre-emption. Petitioner admitted that the respondents erected a factory upon the suit property. It has never been under cultivation since its purchase. It is also reflected from the sale deed (Exh.P-3) that there was a construction in shape of residential Kotha before the sale. The suit property was not remained agricultural land and changed its status, thus not available for pre-emption. It is clear from the evidence on the record that the suit property situated on Multan-Lahore Road and that it has since been included within the Gugo City Limits. The locality where the suit property situated had buildings, factories and modern facilities of electricity, road, Railway Station, Hospital, High Schools, Post Office and Grain Market etc. are also available there, which fully qualified this locality to be characterized as a town. There is no evidence on record which suggest that custom of pre-emption is existed in said town/sub-division. In view of above, the findings recorded by the learned appellate Court with regard to issue No.4 do not require any interference.

30. For what has been discussed above, after considering all the material available on the record it is very much clear that the instant Civil Revision is without any merits, hence, the same is hereby **dismissed** with no order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE.

APPROVED FOR REPORTING.

JUDGE.

ANNOUNCED IN OPEN COURT ON _____

JUDGE.

A.Razzaq.